

**Court No. - 39**

**Case :-** WRIT - C No. - 4587 of 2021

**Petitioner :-** M/S Shri Balaji Enterprises And Another

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Vidya Prakash Singh

**Counsel for Respondent :-** C.S.C., Krishna Agarwal

**Hon'ble Naheed Ara Moonis, J.**

**Hon'ble Dinesh Pathak, J.**

Heard learned counsel for the petitioners, learned Standing Counsel for respondents no.1, 3 & 4 and Shri Krishna Agarwal, learned counsel appearing on behalf of respondents no.2 & 5.

The instant petition has been filed seeking following reliefs :

"(a) issue a writ, order or direction in the nature of writ of certiorari quashing the recovery citation dated 25.11.2020 issued by the respondent no. 4 (contained as Annexure No. 3 to this writ petition)."

Learned counsel for the petitioners submits that they are ready and willing to deposit the total amount of Rs.23,96,316/- in easy installments.

Shri Krishna Agarwal, learned counsel for respondent nos.2 & 5 submits that the petitioners' grievance for payment of dues in easy installments can be considered and decided under Clause 6.14 of the Electricity Supply Code, 2005, hence some reasonable time may be allowed by this Court.

Considering the aforesaid submissions, without going into the merits of the case, this writ petition is **disposed of** with a direction to the petitioners to move a representation ventilating all their grievances before respondent no. 5 within three weeks from today along with a copy of this order who shall consider and decide the same strictly in accordance with law preferably within a period of four weeks.

In case the petitioner deposits the first installment of the amount as agreed between the parties, the property in question shall not be sealed. In case of default in payment, the petitioners shall not be entitled to the benefit of this order.

**Order Date :-** 10.2.2021

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